

**BEFORE
THE FEDERAL MARITIME COMMISSION**

DOCKET NO. 22-34

SEAFAIR USA LLC

VS.

STERLING CONTAINER LINE LIMITED AND
ATLANTIC FORWARDING LTD.

**MOTION TO EXTEND TIME TO SERVE INITIAL DISCOVERY REQUESTS AND TO
RESPOND TO RESPONDENTS' INITIAL DISCOVERY REQUESTS**

Complainant SEAFAIR USA LLC (“SeaFair” or “Complainant”) seeks an order extending the time to serve initial discovery requests on Respondents STERLING CONTAINER LINE LIMITED and ATLANTIC FORWARDING LTD. and to respond to Respondents’ initial discovery requests.

The deadline for SeaFair to serve initial discovery requests was February 17, 2023 and the deadline to answer Respondents’ initial discovery requests is March 17, 2023. SeaFair seeks a 15 days extension from the original deadlines to serve initial discovery requests and to respond to Respondents’ initial discovery requests. The new deadlines will be March 4, 2023 for serving Respondents initial discovery requests, and April 1, 2023 for responding to Respondents’ initial discovery requests, respectively.

The reasons for the request include: (1) counsel of Complainant had been sick in the past few weeks, (2) parties were scheduling mediation for April 11-14, 2023; and (3) Respondents’ discovery requests require extensive search of the records. Since parties have until April 25, 2023

to serve discovery requests. Complainant still can serve its discovery requests. Therefore, extending the deadline to serve initial discovery requests does not affect the ability of Complainant to serve discovery requests. Also, since parties are in the process of scheduling mediation to take place between April 11 - 14, 2023, allowing the extension will give parties the chance to exchange documents and facilitate mediation. The counsel for Respondents, Ms. Ashley Kutz Kelly and Mr. Julius Bodie, do not agree nor object to this request.

Date: March 3, 2023

Respectfully Submitted,

/s/Shanshan Liang
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Counsel for Complainant

IT IS SO ORDERED

Dated: _____, 2023

Erin M. Wirth
Administrative Law Judge

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 3rd day of March 2023, the foregoing Motion To Extend Time To Serve Initial Discovery Requests And To Respond To Respondents' Initial Discovery Requests was served via electronic mail on:

Federal Maritime Commission
Office of the Secretary
secretary@fmc.gov

Federal Maritime Commission
The Honorable Erin M. Wirth
Chief Administrative Law Judge
Presiding Administrative Law Judge
judges@fmc.gov

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